



Office of
Deputy Commissioner
of Maritime Affairs

THE REPUBLIC OF LIBERIA
LIBERIA MARITIME AUTHORITY

Marine Notice

POL-005
Rev. 05/24

**TO: ALL SHIPOWNERS, OPERATORS, MASTERS AND OFFICERS OF
MERCHANT SHIPS, AGENTS AND RECOGNIZED ORGANIZATIONS**

SUBJECT: Ballast Water Management Plans (BWMP)

References:

- a) **Maritime Regulation 2.38**
- b) **International Convention for the Control and Management of Ship's Ballast Water and Sediments, 2004 (BWM Convention)**
- c) **Resolution A.868(20) – Guidelines for Control and Management of Ship's Ballast Water**
- d) **Resolution MEPC.127(53) "Guidelines for Ballast Water Management and Development of Ballast Water Management Plans (G4)" as amended by MEPC Resolutions 306(73) and 370(80)**
- e) **Resolution MEPC.173(58) "Guidelines for Ballast Water Sampling (G2)"**
- f) **Resolution MEPC.209(63) – "2012 Guidelines on Design and Construction to Facilitate Sediment Control on Ships (G12)"**
- g) **Resolution MEPC.288(71), "2017 Guidelines for Ballast Water Exchange (G6)" as amended by MEPC Resolution 371(80)**
- h) **Resolution MEPC.300(72) – BWMS Code**
- i) **Resolution MEPC.378(80) – 2023 Biofouling Guidelines**
- j) **Resolution MEPC 387(81)- Interim Guidance on operating in challenging water quality conditions**
- k) **BWM.2/Circ.42/Rev.2 – Guidelines for Ballast Water Sampling and Analysis for Trial Use in Accordance with BWM Convention and (G2)**
- l) **BWM.2/Circ.82- Guidance for temporary storage of sewage and/or grey water in ballast water tanks**
- m) **Marine Notice POL-014**

Supersedes: Marine Notice POL-005, dated 07/20

The following changes have been included

1. **Amended paragraph 1.3 to include guidance in ports with challenging water quality conditions; and temporary storage of treated sewage and/or grey water.**
2. **Updated Appendix I and II**

INTRODUCTION;

Invasive marine species are one of the four greatest threats to the world's oceans. Unlike other forms of marine pollution, the impacts of invasive marine species are most often irreversible.

In response to the threats posed by invasive marine species, the United Nations Conference on Environment & Development (UNCED) in Rio de Janeiro in 1997 (Agenda 21) called on IMO and other international bodies to act to address the transfer of harmful organisms by ships. Under the Agenda 21, it called upon states acting individually or bilaterally within the IMO framework to address the degradation of the marine environment.

In response to this, the IMO Assembly developed & adopted the “Guidelines for the control & management of ships ballast water, to minimize the transfer of harmful organisms and pathogens” in 1997 by [Resolution A.868 \(20\)](#). This replaced the already existing guidelines A.774 (18).

Resolving to prevent, minimize and ultimately eliminate the risks to the environment, human health, property and resources arising from the transfer of Harmful Aquatic Organisms and Pathogens through the control and management of ships' Ballast Water and Sediments, as well as to avoid unwanted side-effects from that control and to encourage developments in related knowledge and technology, after more than 14 years of complex negotiations between IMO Member States, the BWM Convention was adopted by consensus at a Diplomatic Conference held at the IMO on 13 February, 2004.

Noting that Regulation A-2 of the BWM Convention requires that discharge of ballast water shall only be conducted through Ballast Water Management in accordance with the provisions of the Convention and that Regulation B-1 of the BWM Convention provides that each ship shall have on board and implement a BWM plan approved by the Administration, taking into account Guidelines developed by the Organization, the IMO MEPC adopted on 22 July, 2005 [Resolution MEPC.127\(53\)](#) “Guidelines for Ballast Water Management and Development of Ballast Water Management Plans” – Guidelines (G4), which was amended by [Resolutions MEPC.306\(73\)](#) and [370\(80\)](#).

PURPOSE:

This Notice provides guidance to vessel owners, operators and managers in the development of BWM Plans to meet the requirements of references (a) through (k).

This Notice also informs ship owners, vessel operators and masters that several states have adopted additional measures with a view to prevent, minimize and ultimately eliminate the risks of introduction of Harmful Aquatic Organisms and Pathogens through ships entering their ports.

APPLICABILITY:

This Notice applies to all ships to which the BWM Convention applies.

1.0 REQUIREMENTS:

- 1.1 Each ship to which the BWM Convention applies shall have on board and implement a BWM Plan. The Liberian Administration has informed its Recognized Organization's (RO) that from 22 April, 2017, the Administration will review and approve all BWM Plans. Regular review of the Plan by the owner, operator, or master should be conducted to ensure

that the information contained is accurate and updated. Any changes to the BWM Plan are required to be approved by the Administration.

1.2 The BWM Plan shall be specific to each ship and shall at least:

- .1 detail safety procedures for the ship and the crew associated with Ballast Water Management as required by this Convention;
- .2 provide a detailed description of the actions to be taken to implement the Ballast Water Management requirements, including approaches other than in accordance with Regulation D-1 and D-2 of the Convention; and supplemental Ballast Water Management practices as set forth in this Convention;
- .3 detail the procedures for the disposal of Sediments:
 - .1 at sea; and
 - .2 to shore;
- .4 include the procedures for coordinating shipboard Ballast Water Management that involves discharge to the sea with the authorities of the State into whose waters such discharge will take place;
- .5 designate the officer on board in charge of ensuring that the plan is properly implemented;
- .6 contain the reporting requirements for ships provided for under this Convention using the ballast water reporting form as may be required in Appendix I of [Resolution MEPC.288\(71\)](#);
- .7 be written in the working language of the ship. If the language used is not English, French or Spanish, a translation into one of these languages shall be included; and
- .8 for vessels entering the Antarctic treaty area, take into account guidelines for ballast water exchange in the Antarctic Treaty area as set out in the [Resolution MEPC.163\(56\)](#).

1.3 In addition to the minimum mandatory aspects of the BWM Plan listed above, the BWM Plan should, inter alia, contain:

- .1 plans/drawings and a description of the ballast system;
- .2 information on ballast water sampling points and sampling procedures;
- .3 operational or safety procedures and restrictions;
- .4 description of the method(s) used on board for the ballast water management and sediment control, including procedures for the disposal and handling of sediments;
- .5 Any shipboard contingency measures implemented to discharge non-compliant ballast water in accordance with guidelines in [BWM.2/Circ.62](#); and if applicable, procedures for operating in ports with challenging water quality conditions, taking into account interim guidance in [reference \(j\)](#);

- .6 If applicable, ship-specific change-over procedure, from ballast water storage to treated sewage/grey water storage and back to ballast water storage, taking into account guidance in [reference \(I\)](#);
 - .7 duties of the ballast water management officer;
 - .8 recording requirements; and
 - .9 crew training and familiarization.
- 1.4 The non-mandatory section of the BWM Plan may include in appendices, additional information such as provision of additional diagrams and drawings, shipboard equipment and reference materials. National or regional requirements that differ from the Convention, including any additional measures taken pursuant to regulation C-1 of the BWM Convention may also be recorded for reference. Liberian flagged ships are required to comply with such National or regional requirements, including additional measures. Where these compromise the safety and security of the ship or conflict with any other Convention with which the ship must comply, this should be brought to the attention of that coastal or port State authority as soon as possible, and, where practicable, prior to entering into waters under the jurisdiction of that State.
- 1.5 The Administration recommends that ship owners, operators and masters contact destination ports to ascertain any additional measures taken by port State authorities regarding ballast water and sediment management and control procedures, relative to the vessel's ports of call, including reporting procedures & other information that will be needed to obtain clearance.
- 1.6 Additional information on National requirements for Ballast Water management is provided in Appendix I of this Marine Notice.
- 1.7 Pursuant to [BWM.2/Circ.52/Rev.1](#), ships (such as mobile offshore units and ships that may need to undertake a single international voyage to a dry-dock) that need to enter or re-enter into exclusive operation should also include a procedure in their approved BWM Plan for thoroughly cleaning their ballast tanks, piping and equipment to the satisfaction of the Administration and any applicable authorizing Party.

2.0 BWM Plan Review and Approval

- 2.1 The Plan that is submitted for approval by the Administration shall be in English. To facilitate the review and plan approval process, it is recommended to complete the checklist in Appendix II and used by the Administration for plan approval and attach it to the submitted plan. The checklist identifies the applicable sections of the BWM Plan, taking into account guidance in references above.
- 2.2 The BWM Plan should be sent to the Office of the Deputy Commissioner of Maritime Affairs, Republic of Liberia, Liberian International Ship & Corporate Registry, LLC, Attn: Regulations and Standards, 22980 Indian Creek Dr., Suite 200 Dulles, Virginia 20166, USA. Telephone: + 1 703 790 3434, Telefax: + 1 703 790 5655.
Email: Planapproval@liscr.com

Questions regarding this instruction and fees for BWM Plan review and approval should

be referred to E-mail: RegsandStandards@liscr.com.

- 2.3 In accordance with **BWM.2/Circ.40**, BWM Plans approved in accordance with **resolution A.868(20)** or **MEPC Resolution 127(53)** as amended, remain valid until the plan requires revision due to the implementation of the ballast water performance standard in regulation D-2 or other approaches for ballast water management provided for in the BWM Convention.
- 2.4 BWM Plans submitted to an authorized RO for review prior to 22 April, 2017 may be approved by the RO. After that date all BWM Plans shall be submitted to the Administration for review and approval.

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Appendix I

National Guidelines for Ballast Water and Bio-Fouling Management

The following States have implemented additional ballast water management measures, including reporting and further details are available in the following links:

1. **United States Ballast Water Rules for controlling the discharge of Living Organisms from ships' Ballast Water in US waters may be found in United States Code of Federal Regulations, 33 CFR 151, subparts C & D and 46 CFR, subpart 162.060.**

<https://www.ecfr.gov/cgi-bin/retrieveECFR?gp=&SID=646436d759d5c6dfba13ccc55eed6a79&mc=true&n=pt33.2.151&r=PART&ty=HTML>

https://www.ecfr.gov/cgi-bin/text-idx?SID=57986cbc95d9bc545851fd25dafb9963&mc=true&node=sp46.6.162.162_1060&rgn=div6

Information on current US ballast water management, reporting requirements, regulations and policy may be accessed on the link to the US Coast Guards website:

<https://www.dco.uscg.mil/Our-Organization/Assistant-Commandant-for-Prevention-Policy-CG-5P/Commercial-Regulations-standards-CG-5PS/Office-of-Operating-and-Environmental-Standards/Environmental-Standards/>

2. **Australian** Ballast Water Management requirements may be accessed on <https://www.agriculture.gov.au/biosecurity/avm/vessels/marine-pest-biosecurity/ballast/australian-ballast-water-management-requirements>

The state of Victoria has slightly different requirements which may be found on <https://www.legislation.vic.gov.au/as-made/statutory-rules/environment-protection-ships-ballast-water-regulations-2017>

3. **Argentine** National requirements may be accessed on http://www.prefectura naval.gov.ar/web/es/html/ordn_pdf/6-1998-7.pdf

The translated version in English may be found in ordinance no.7 of 1998 in Volume 6 <http://translate.google.com/translate?hl=en&sl=es&tl=en&u=http%3A%2F%2Fwww.prefectura naval.gov.ar%2F>

4. **Brazilian** Ballast Water Regulation may be found in NORMAM-401/DPC on the link to the Brazilian Maritime Authority's website <https://www.marinha.mil.br/dpc/filtro-normam-all?page=2>
5. **Canadian** Ballast Water Control & Management Regulations may be accessed on Transportation Publication 13617, [A Guide to Canada's Ballast Water Control and Management Regulations](http://www.tc.gc.ca/eng/marinesafety/tp-tp13617-menu-2138.htm) <http://www.tc.gc.ca/eng/marinesafety/tp-tp13617-menu-2138.htm>

Information on the Canadian Ballast Water Program may be accessed on <http://www.tc.gc.ca/eng/marinesafety/oep-environment-ballastwater-menu-449.htm>

6. Regional Harmonized Procedures for the Uniform Implementation of the Ballast Water Management Convention in the Mediterranean Sea can be found in **BWM.3/Circ.4**.
7. Guidelines for ballast water management prior to discharging ballast in the **ROPME** Sea area of the Arabian Gulf may be found in **IMO's MEPC 59/INF.3** and **MEPC 69/INF.2**.
8. Resolution 0477/2012 of 6 September, 2012 issued by the Directorate-General of Maritime Affairs, Ministry of Defence, adopted and established measures and a control procedure for verifying the management of ballast water and sediments on board domestic and foreign ships and maritime craft in **Colombian** jurisdictional waters. The English translation is available in **IMO BWM.2/Circ.41**.
9. **New Zealand** rules to control discharge of ballast can be found in <https://www.maritimenz.govt.nz/commercial/environmental-requirements/environmental-requirements-for-operators/ballast-water-management-bwm/>

The New Zealand Ministry for Primary Industries (MPI) issued a notice announcing that, from May 2018, all vessels arriving in New Zealand must have clean hulls. The Craft Risk Management Standard (CRMS) has been developed to provide guidance regarding compliance. A copy of the CRMS may be downloaded through the link:

<https://www.mpi.govt.nz/document-vault/11671>

10. For any additional requirements for ballast water management at **Black Sea** ports, the shipowner, operator or master should contact the ship's agent at that port for guidance.

Appendix II
Ballast Water Management (BWM) Plan Questionnaire

VESSEL NAME: _____ **DATE:** ____/____/____

Questionnaire			Y	N	Page/item in plan
BWMC 2004	MEPC.127 (53, as amended)	Ballast Water Management Plan (BWMP) Basic Requirements from MEPC 127(53), as amended			
	B3.9	Preamble			
		Introduction. An introductory paragraph summing up the Regulation B-1 and providing the intent of the plan.			
	B3.9.2	Ship Particulars:			
		Ship specific information: ✓ Name; ✓ Flag; ✓ Port of Registry; ✓ Gross Tonnage; ✓ IMO Number; ✓ Length between BP, ✓ Beam, ✓ Call Sign, ✓ Deepest ballast Drafts (Normal and Heavy weather); ✓ Total Ballast Capacity in Cubic Meters, ✓ Identification (by rank) of the appointed ballast water management officer.			
		Index. An index of sections to be included to reference the contents of the plan.			
		Purpose: A brief introduction for the ship's crew, explaining the need for ballast water management and the importance of accurate record keeping.			
B-3, D-1, D-2, D-3	B3.9.3	Description of the Ballast Water Management System:			
		Plans/drawings of the ballast system: ✓ Ballast tank arrangement; ✓ Ballast capacity plans; ✓ A ballast water piping and pumping arrangement including air pipes and sounding tubes; ✓ The ballast water management system used on board, with references to detailed operational maintenance manuals held on board; ✓ Installed ballast water treatment systems, and; ✓ A plan profile of the ship, or a schematic drawing of the ballast arrangements,			
	B3.9.4	Ballast Water Sampling Points:			

		A list of diagrams indicating the location of the sampling access points and ballast water tanks to enable crew members to assist the authorized inspection officers to obtain samples. Authorized inspection officers are to be advised of all safety procedures to be observed when entering enclosed spaces			
A-3, A-5, B-3, D-3	B3.3.1/3.2 .23.3.2/3.4	Operation of the Ballast Water Management System:			
		A detailed description of the operation of the Ballast Water Management System(s) used on board.			
		Information on general ballast water management precautionary practices, including system design limitations			
C-2	A1.1/1.2.1 .4/1.2.1.5; B3.2.1/3.3 .1/3.3.3/3.4	Operational and Safety Restrictions:			
		The plan tells the Master that compliance with the ballast water management regulations shall not have priority over the safety or stability of the vessel, its crew or its passengers because of adverse weather, ship design or stress, equipment failure or any other extraordinary condition.			
		Details of specific operational or safety restrictions including those associated with the management system which affects the ship and crew including reference to procedures for safe tank entry.			
B-3	B3.2.2/3.3 .2/3.6	Description of methods used on board for ballast water management and sediment control:			
		Details of the method(s) used on board for the management of ballast and for sediment control including step-by-step operational procedures.			
B-4, D-1	A1.2.1; B3.5	Ballast Water Exchange- Instructions for a vessel conducting BW exchange to include:			
		* Whenever possible exchange of BW to be conducted in waters at least 200 nm from nearest land and at least 200 meters in depth.			
1.2		* In case above cannot be followed then the exchange to take place as far from nearest land as possible but at least 50 nm from land and in 200 meters of depth.			
		Instructions and procedures are provided to ensure BW exchange carried out in accordance with the regulation with at least 95% volumetric exchange of BW.			
		Instructions and procedure are provided for the ship when exchanging BW by pumping-through method to pump at least 3 times the volume of each BW tank.			
2		* In case none of the above can be met then in a State designated area			
.5		Instructions are provided in the plan to record in the Ballast Water Record Book any reasons for not complying with the regulations.			

Trim and Stability Information	B/3.4	Vessel Trim and Stability Information during Ballast Water Exchange: ✓ Ballast Water Exchange Sequence Table. ✓ Stability limitations (GM/KG limit curve values). ✓ Permissible Longitudinal strength (Shear Forces and Bending Moments) information at sea going condition. ✓ Maximum value for Trim (Forward and Aft draught), and Bottom slamming. ✓ Bridge visibility distance considerations. ✓ Propeller Immersion. ✓ Free surface effect consideration calculations of slack ballast tanks. ✓ Class loadicator approval.			
B-5	A/1.3, B3.2.3	Procedures for Disposal of Sediments:			
		Procedures for disposal of sediments at sea and to shore, provide a safe means for removal of sediment samples and minimize the uptake and undesirable entrapment of sediments.			
	B3.2.4/3.2.6	Methods of Communication:			
		Details of the procedures for co-ordinating the discharge of ballast in waters of a coastal State.			
		Contain the reporting requirements for ships provided for under the Convention			
B-6	B3.2.5/3.7	Duties of the Ballast Water management Officer:			
		Outline of the duties of the designated officer.			
B-2	A2; B3.8	Recording Requirements			
.1		Instructions for the maintenance of the Ballast Water Record book in accordance with Appendix II of the International Convention.			
.3		Instructions to make entries in the BW record book describing circumstances and reasons when Water Ballast may have to be discharged in exceptional circumstances.			
.4		Instructions stating the BW record book shall available for inspection.			
.5		Instructions regarding the following record keeping procedures for the BW Record Book: ✓ Each operation concerning BW to be fully recorded without delay, ✓ Each entry to be signed by the officer in charge of the operation, and ✓ Each completed page to be signed by the Master.			
		Entries in the BW record book can be in the working language. In case they are not in English, a translation is to be provided in English.			
.2		Ballast water records maintained on board for a minimum of two years and thereafter with the company for a minimum of three years.			
B-6	A3, B3.9.5	Crew Training and Familiarization			
		✓ Requirements of a general nature regarding ballast water management, ✓ Training and information on ballast water management practices; ✓ Ballast water exchange			

		✓ Ballast Water treatments systems; ✓ General Safety considerations; ✓ Ballast water record book maintenance of records; ✓ The operational maintenance of installed ballast water treatment systems; ✓ Safety aspects associated with the particular systems and procedures used on board the ship which affect safety or health of crew and passengers and/or safety of the ship ✓ Precautions for entering tanks for sediment removal; ✓ Procedures for safe handling and packaging of sediment; and ✓ Storage of sediment			
A-4	A1.5/B2.3	Exemptions:			
		A description of any exemption granted to the vessel			
	BWM.2/C irc.62	Contingency Measures:			
		A description of the contingency measures implemented to discharge non-compliant ballast water without posing unacceptable risks to the environment, human health, property and resources developed in accordance with guidelines developed by the Organization			
C-1	A1.4/B2.4/4	Additional Measures:			
		Ships to which additional measures apply, under Regulation C-1, should take them into account in the ships voyage planning. Actions taken to comply with any additional measures should be recorded in the Ballast Water Record Book.			
		Operating in Ports with Challenging Water Quality Conditions			
	MEPC Resolutio n 387(81)	Ships operating or expected to operate in ports with challenging water quality should include procedures in MEPC Resolution 387(81) related to interim guidance on operating in ports with challenging water quality.			
		Temporary Storage of treated sewage and/or grey water in ballast water tanks			
	BWM.2/C irc.82	If applicable, ship-specific change-over procedure, from ballast water storage to Treated sewage/grey water storage and back to ballast water storage			